Stereo HCJDA-38
JUDGMENT SHEET

LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

FAO No.36959/2022

TCS etc. ***Versus*** *Muhammad Siddique Ghumman etc.*

JUDGMENT

Date of Hearing:	03.06.2025.
Appellants by:	Ch. Arshad, Advocate, assisted by Raja Waqas Ahmed, Advocate.
Respondent No.1 by:	In person.

Anwaar Hussain, J: This appeal under Section 33 of the Punjab Consumer Protection Act, 2005 is directed against judgment dated 14.05.2022 whereby the Trial Court has accepted the complaint of respondent No.1, namely, Muhammad Siddique Ghumman ("**the respondent**") and awarded Rs.124,000/- as compensation.

2. By way of factual background, it has been noted that the respondent booked a consignment of OPPO Mobile phone, with the M/s TCS courier company ("**the appellant-company**"), by way of self-collection by one Shazia Saeed ("**the intended consignee**") and also paid insurance coverage, however, the same was not delivered to the intended consignee, and in fact was collected by one Muhammad Amar, which triggered the issuance of legal notice by the respondent to the appellant-company whereafter the complaint was filed and in reply thereto the appellant-company acknowledged that the consignment was delivered to Muhammad Amar instead of the intended consignee *albeit* the former presented himself as brother of the intended

consignee and he also confessed that he has been chatting with the respondent on the Facebook pretending to be the intended consignee and got the phone, and is willing to return the same. After recording of evidence, the complaint was accepted through the impugned judgment and an amount of Rs.124,000/- was awarded to the respondent as compensation.

3. Learned counsel for the appellant-company submits that the intended consignee never appeared, which indicates that it was the respondent's fault that he did not know the whereabouts of the intended consignee to whom the phone was to be handed over. Adds that the mobile phone is available with the appellant-company, which the respondent can receive, and therefore, no question of damages arises.

4. Conversely, while contending that the intended consignee was not personally known to the respondent and was only a Facebook friend, respondent in person argued that the appellant-company was under duty to hand over the mobile to intended consignee and if someone was impersonifying the intended consignee, the appellant-company should have returned the goods to the consigner. Adds that since the respondent paid the insurance amount to the appellant-company, the respondent only demanded the compensation of Rs.24,000/- but instead of meeting the said demand, the respondent has been dragged by the appellant-company into litigation, therefore, the compensation of Rs.124,000/- is fully justified.

5. Arguments heard. Record perused.

6. The nub of the matter is to determine whether a service provider is liable to pay compensation on account of faulty service when the consumer is also responsible to a certain extent? The respondent handed over a mobile phone to the appellant-

company with clear instructions for it to be delivered to a particular intended consignee-a woman, *via* self-collection, and even paid for insurance coverage. A "self-collection courier service" means a delivery service where the customer and/or the intended recipient collects the shipment/parcel from a designated location, such as a store or a locker, rather than having it delivered directly to a desired address. However, instead of delivering the item to the intended recipient even though the said consignee was an impersonated character, the appellant-company was obligated not to deliver it to a third person. The very concept of "self-collection" implies that the parcel should only be handed over upon strict verification of the identity of the recipient, especially when the item is valuable and insured. The failure to verify identity and the handing over of the parcel to an unauthorized person constitutes a breach of contractual duty as well as negligence. In fact, the fraud, which the intended consignee committed with the respondent, was materialized because of the inefficiency and breach of duty on the part of the appellant-company by handing over the mobile phone to the irrelevant person.

7. The appellant-company later admitted its fault and claimed that the impersonator (Muhammad Amar) had admitted his mistake and had returned the mobile phone, which the appellant-company retains. This admission of error by the appellant-company is legally significant. It confirms that the appellant-company failed to adhere to standard protocols of identification and verification, which are essential in cases where shipments are booked with agreed self-collection. Hence, it is irrelevant that the intended consignee was a fictitious person and was impersonated by one Muhammad Amar and the respondent claimant was himself naïve in being trapped and the same does not absolve the appellant-company of its duty to prevent such frauds. The burden

on a service provider, particularly one dealing in logistics and insured goods, is to ensure that such lapses do not occur. The reliance on mere representations by an unknown third party pretending to be the desired recipient or his/her representative, without documentary verification, violates the reasonable standards expected of such services under consumer protection principles.

8. In light of the facts and the admitted fault by the appellant-company, the return of the mobile phone at a later stage does not undo the breach, nor does it negate the claim for damages, particularly, where there has been mental distress, delay, and inconvenience caused to the respondent/consumer. Therefore, the impugned judgment does not suffer from any infirmity.

9. For what has been discussed above, this appeal has no merits. Hence, the same is **dismissed**. No order as to costs.

(ANWAAR HUSSAIN)
Judge

Approved for reporting.

Judge

Akram